

STATE OF INDIANA COUNTY OF VANDERBURGH

**IN THE VANDERBURGH SUPERIOR COURT 1 HON. DANIEL S. MURRIE,
SPECIAL JUDGE**

**ESTATE OF LEONARDO (“LEO”) ESLINGER, SERENA ESLINGER, JONAH
ESLINGER, KRISTI D. HELD, Individually, as Personal Representative of the Estate
of Leonardo Eslinger, and as Next Friend for Minor Plaintiffs, and SHERRI
ESLINGER,
Plaintiffs,**

v.

**JILLIAN N. KRATOCHVIL, and STOLL, KEENON, OGDEN, PLLC,
Defendants.**

Case No.: 82D01-2512-CT-008032

Related Case Nos.: 14D01-2603-CB-000248 14D01-2603-CB-000258 26S-SJ-00061

**MEMORANDUM B IN SUPPORT OF MOTION TO VACATE ORDER GRANTING
PROTECTIVE ORDER**

Plaintiffs submit this memorandum in support of their Omnibus Motion to Vacate the Court’s May 6, 2026 Order (the “Order”) granting Defendants’ Motion for Protective Order. The Order was procured through an unconscionable scheme of material misrepresentations and fraud on the court. Defendants deliberately painted a false narrative of Plaintiffs’ financial stability and the relevance of a real estate transaction to obtain an order shielding themselves from discovery into their ongoing pattern of self-dealing and misconduct. Because the Order

was obtained by fraud, denies Plaintiffs access to highly relevant evidence, and was entered without a hearing, it must be vacated.

STATEMENT OF FACTS

Defendants sought a protective order under Indiana Trial Rule 26(C) to bar all discovery related to a failed real estate transaction involving Plaintiff Kristi Held and Peter Rudolph, a client represented by Defendant Stoll, Keenon, Ogden, PLLC (“SKO”). To justify this, Defendants presented the following fictions to the Court: 1. That Plaintiffs were engaged in a “\$135,000 real estate transaction,” implying it was an “expensive” acquisition. 2. That this transaction demonstrated Plaintiffs had “sufficient means” and were not suffering the financial hardship they claimed. 3. That the real estate matter was “completely unrelated” to the present litigation.

The reality, which Plaintiffs were prepared to prove at the now-canceled June 5, 2026 hearing, is a stark contrast to Defendants’ misrepresentations: 1. **The Transaction Never Closed:** The deal collapsed. It did not close because SKO, while representing the seller (Rudolph) in a transaction with its former clients (the Helds), inserted a self-serving “Hold Harmless” clause into the contract, attempting to absolve itself of liability related to this very litigation. 2. **Inflated and Misleading Figure:** The \$135,000 figure was a deliberately inflated initial offer for a 5-acre parcel. Plaintiffs negotiated the price down to \$101,500 for a smaller 2.5-acre parcel. 3. **A Drastic Downsizing, Not an Acquisition:** The transaction was not an “expensive” luxury purchase. It was a 65% downsizing for the Held family, from a 4,300 sq. ft. home to a modest 1,290 sq. ft. home, necessitated by the severe financial hardship resulting from Defendants’ alleged malpractice. 4. **A Trust for Minor Children:** The home was not for Kristi Held’s personal benefit but was intended to be purchased for a trust for the minor Eslinger children, whose financial futures were damaged by Defendants’ conduct. 5. **Directly Related to This Litigation:** The transaction is inextricably linked to this

lawsuit. The deal's collapse was a direct result of SKO's attempt to leverage an unrelated transaction to gain a litigation advantage, which is highly relevant to Plaintiffs' claims of bad faith and a pattern of self-dealing. 6. ***Privilege Waived Through Disclosure to Third***

Parties: *Any claim of attorney-client privilege regarding SKO's communications with the Rudolph's was waived when SKO shared strategy, advice, and confidential communications with third parties, specifically Kristi and Charles Held via email, text messages, and verbal conversations. The privilege does not protect communications disclosed to adverse parties or third parties outside the attorney-client relationship.*

7. ***Poisoning a Decades-Long Friendship:*** *SKO's interference was not merely professional; it was personal and destructive. SKO poisoned a decades-long positive friendship between the Held's and their neighbors, the Rudolph's, using its representation of the Rudolph's as a vehicle to harm Plaintiffs' personal relationships and gather intelligence for this litigation. This conduct demonstrates SKO's willingness to sacrifice client interests and personal relationships to serve its own defense strategy."*

ARGUMENT

I. The Protective Order Was Procured by Fraud on the Court and Must Be Vacated.

A court may grant relief from an order procured by fraud on the court, which occurs when “an unconscionable plan or scheme was used to improperly influence the court’s decision.” *Stonger v. Sorrell*, 776 N.E.2d 353, 356 (Ind. 2002). The party seeking relief must show that the fraudulent acts “prevented the losing party from fully and fairly presenting its case or defense.” *In Re the Paternity of S.C.*, 966 N.E.2d 143, 153 (Ind. Ct. App. 2012).

Defendants’ conduct is a textbook example of fraud on the court. They knowingly presented a false narrative—a successful, expensive, unrelated real estate purchase—to mislead the

Court into believing discovery was irrelevant and burdensome. This was a calculated scheme designed to improperly influence the Court's decision. By entering the Order *sua sponte* and canceling the hearing, the Court unwittingly enabled this scheme, denying Plaintiffs their right to rebut these falsehoods and fairly present their opposition. This is precisely the scenario for which relief from a fraudulently obtained order is warranted.

II. The Shielded Discovery is Highly Relevant and Proportional, and the Crime-Fraud Exception Defeats Any Claim of Privilege.

Under Indiana Trial Rule 26(B)(1), discovery is permissible for any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case. The discovery Defendants seek to block is not only relevant but goes to the heart of Plaintiffs' claims.

A. The Transaction is Directly Relevant to SKO's Pattern of Self-Dealing.

The real estate transaction is not "unrelated." To the contrary, it is powerful evidence of SKO's pattern of unethical self-dealing. The Indiana Supreme Court has held that transactions where an attorney's personal interests are placed in conflict with a client's are "presumptively fraudulent." *Liggett v. Young*, 877 N.E.2d 178, 184 (Ind. 2007). Here, SKO, while representing the seller in a transaction with its former clients, attempted to insert a hold-harmless clause to protect itself in *this* litigation. This act is a direct continuation of the misconduct alleged in Plaintiffs' Complaint and is therefore highly relevant.

B. The Crime-Fraud Exception Pierces Any Asserted Privilege.

Defendants cannot hide behind attorney-client privilege. Communications made in furtherance of a crime or fraud are not privileged. SKO's attempt to insert the hold-harmless clause was an act of fraudulent self-dealing. Therefore, communications between SKO, Rudolph, and the Helds regarding the negotiation and ultimate collapse of this transaction fall squarely within the crime-fraud exception and are fully discoverable.

"Moreover, any privilege was waived when SKO shared documents and communicated terms and strategies proposed or given in advisement by counsel to third parties, specifically to Kristi and Charles Held via email, text, and verbal conversations. The privilege cannot be used as both a sword and a shield—SKO cannot actively interfere in Plaintiffs' personal affairs while simultaneously claiming privilege protects those communications."

The need for a protective order is underscored by what occurred when Kratochvil failed to mark her GAL report confidential. That failure resulted in the report being obtained from the scene of Joseph and Diana's residence, relied upon by Louisiana DCS, and used against petitioners to keep the children in foster care. Plaintiffs cannot risk similar breaches of confidentiality by SKO. The protective order is necessary to prevent SKO from continuing to interfere in Plaintiffs' personal affairs and to ensure that confidential information is properly protected."

C. The Protective Order Violates Proportionality by Preventing Discovery of Critical Evidence.

The protective order is grossly disproportionate. It completely bars Plaintiffs from obtaining evidence that is critical to proving their claims and challenging Defendants' defenses. Given the importance of this evidence to resolving central issues in the case, the minimal burden of producing documents and communications related to a single, failed real estate deal is far outweighed by Plaintiffs' need for the discovery.

CONCLUSION

The May 6, 2026 Protective Order is the fruit of a poisonous tree—a product of Defendants' material misrepresentations designed to mislead the Court and conceal evidence of ongoing misconduct. It violates fundamental principles of discovery and due process. Plaintiffs

respectfully request that the Court vacate the Order and enter an order compelling Defendants to produce all documents and communications related to the failed real estate transaction.

Date: May 17, 2026

Respectfully submitted,

[Counsel Name] [Attorney Number] [Firm Name] [Address] [Phone Number] [Email

Address] *Counsel for Plaintiffs*